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Belarus and the Eastern Partnership

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Summary

Belarus, unlike Ukraine, Georgia or Moldova, has never held or declared an ambition to join the European Union and, thus, has never considered the Eastern Partnership (EaP) as an instrument of institutional integration with the EU and as a pathway to future accession talks. Minsk has only been interested in the EaP as a framework for structuring and deepening political dialogue with the EU and advancing pragmatic cooperation in various formats and sectors bilaterally with the EU and multilaterally within the overall EaP – that is, EU-28/27 + EaP-6 – construct. Reflective of that, between 2009 and 2020, Belarus was particularly active in initiating and promoting numerous cooperation ideas and projects. At the same time, as it never sought membership opportunities, Minsk had no interest in strengthened political association and economic integration with the EU that the EaP aimed at, as well as in the significant reforms they entailed, unless they could bring quick and tangible material results. Also, the Belarusian government always insisted that the principle of shared ownership and responsibility in the EaP be respected and interpreted any attempts by the EU to take decisions regarding Belarus without Minsk's formal consent as the violation of the principle.

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Because of the above, the EU's standard conditionality-based approach never really had a chance to work vis-à-vis Minsk and to streamline Belarusian domestic and international policies. In this respect, Belarus has always been seen as the most difficult partner and a special case for the EU in the Eastern Partnership. Yet, Minsk's rationale

and policy stance within the EaP and in bilateral engagement with the EU, in fact, was not really different from that of Azerbaijan; nonetheless, the EU's policies towards the two partner countries still differed significantly.

The Belarusian presidential elections in August 2020 became a watershed moment for Belarus-EU relations and Minsk's role in the EaP. The EU's unprecedented pressure and numerous packages of sanctions against Belarus, as well as Minsk's asymmetrical countermeasures, are tearing apart the very socio-economic and humanitarian tissue that has long ensured peaceful coexistence and cooperation across the Belarusian-EU border. In response to EU sanctions, Belarus has suspended participation in the Eastern Partnership. Yet, it has not left the initiative altogether; neither has the EU formally excluded Minsk from the EaP or replaced it by representatives of the Belarusian opposition.

Technically, this preserves an opportunity to resume cooperation and use the EaP framework, like it was the case before, for gradually improving Belarus-EU relations. Minsk remains as interested in such cooperation as it was in the past. However, the structural realities have deteriorated so significantly, and trust has been so damaged that such a hypothetical scenario would require unprecedented political will and gigantic diplomatic efforts to turn the overall tide in Belarus-EU relations before even modest sectoral cooperation can resume.

Belarus's rationale for joining the Eastern Partnership in 2009

After the EU decided to invite Belarus to join the Eastern Partnership in early 2009, Minsk quickly accepted the invitation. That happened even despite Brussels' preference to avoid President Alyaksandr Lukashenka's personal participation in the inaugural Prague summit, which some circles in Minsk interpreted as discriminatory vis-à-vis Belarus. As one Minsk-based professor of international relations put it, "the decision to join the EaP as a founding member demonstrated that Belarus's economic interest in cooperation with the EU outweighed the latter's political demands, as long as those demands were communicated skilfully and did not touch upon the foundations of the existing political system in Belarus."

Already in Prague, Minsk sent a clear signal about the priorities and limitations of its participation in the EaP by appointing a deputy prime minister in charge of energy and the industrial complex as head of the delegation. While Belarus did not entertain high expectations regarding the prospects of political association with the EU, it was strongly interested in project-based cooperation in all sectors of the economy and in the

development of respective infrastructure. At the same time, it wanted to ensure that the EaP was not directed against any third parties and, thus, would not become a geopolitically divisive initiative.

> In other words, Minsk wanted a largely apolitical Eastern Partnership that enhanced regional stability and cohesion through mutually beneficial pragmatic cooperation and did not further exacerbate geopolitical tensions, which had already escalated in light of the Russo-Georgian war.

Besides opportunities for pragmatic project-based cooperation, the EaP presented unique functional value for Belarus-EU relations. Belarus is the only country among the EaP-6 that has no basic bilateral agreement with the EU. The Partnership and Cooperation Agreement (PCA) was concluded on 6 March 1995 but never made it through the ratification stage across the EU as several national legislatures refused to approve it on the grounds of democracy deficit and human rights violations in Belarus. Before 24 October 1996, when the European Parliament suspended the ratification process, only eight out of the then fifteen EU member states had completed national procedures and greenlit the PCA with Minsk.

The EU also abrogated the temporary trade deal of 25 March 1996, which was meant to facilitate economic relations until the PCA came in force. Technically and somewhat ironically, the 1989 Agreement between the European Economic Community and the European Atomic Energy Community and the USSR on Trade and Commercial and Economic Cooperation remains the only framework treaty for regulating certain aspects of EU-Belarus economic relations.

Such an atypical legal void had (and continues to have) at least two significant practical implications.

> *First*, no proper bilateral dimension has ever existed in the relationship. As a result, the EU could not apply the ENP Action Plan framework to Belarus and only the multilateral dimension of the EaP was available to Minsk.

Second, Belarus and the EU did not have any established platform for regular contacts and communication even at working levels, not to mention the level of top government officials. Given that and because of the predominantly conflictual atmosphere in Belarus-EU relations (which resulted primarily from disagreements over Minsk's democratic and human rights record), it was at times highly problematic to simply arrange mutual government-level visits and talks. Each such attempt would attract

heightened media attention and draw immediate criticism from democracy-promotion circles in the EU and Belarusian opposition who traditionally advocated for curtailing any contacts with the Lukashenka government and isolating Belarus. It was in this latter aspect that the EaP offered unique functional value for both Minsk and its EU counterparts, as it provided a legitimate framework for routine government contacts.

The EaP-6 component of the initiative appeared yet another factor adding to Minsk's overall interest in the Eastern Partnership. At the time of the Prague summit, Belarus had excellent political relations with each other post-Soviet state joining the EaP. Revealingly, on several occasions, the Belarusian government could rely on their diplomatic solidarity to counter developments that it wanted to avoid. For example, for many years, the authorities of the other five partner countries supported Minsk's efforts to prevent the participation of Belarusian non-parliamentary opposition in the Euronest Parliamentary Assembly. Also, the Eastern neighbourhood dimension of the EaP initially looked conducive to both Belarusian priorities – enhancing pragmatic project-based cooperation and avoiding new geopolitical dividing lines – even though the six partner countries were visibly diverging in their political characteristics and interests vis-à-vis the EU.

For Minsk, ensuring that third actors did not perceive the EaP as a threat to their own interests was of utmost national security importance, as it was aware of Russia's growing geopolitical sensitivities and suspicions towards the Eastern Partnership.

> The special relationship between Minsk and Moscow, which the establishment of the Union State of Belarus and Russia in 1999 reflected, as well as the EU's inability to offer a realistic strategic alternative to relations with Russia, placed some limitations on Minsk's reasonable room for manoeuvre within the EaP.

However, Minsk was interested in cautiously expanding that room and hoped that intensifying sectoral cooperation in the Eastern Partnership and developing respective regional infrastructure would over time diversify its geostrategic options.

Active cooperation but limited structural progress in 2009-2020

The launch of the Eastern Partnership in 2009 coincided with the first major rapprochement between Belarus and the EU that lasted until the end of 2010. The EaP framework proved effective in facilitating a critical mass of diplomatic, business and societal contacts for an overall improvement in relations. It performed the same function later, in 2013-2020, throughout the second and longer period of normalisation

between Minsk and Brussels. Thus, Belarus and the EU twice utilized the multilateral arrangement of the EaP as an instrument for de-escalating tensions and advancing cooperation bilaterally.

Having acceded to the EaP, Minsk took a rather active stance in promoting its priorities within the initiative irrespective of the fact that its participation, in contrast to all the other partner states, was limited to the multilateral component and lacked a proper bilateral dimension. Yet, even at the multilateral level Minsk's involvement was periodically restrained due to political tensions over the domestic situation in Belarus. In particular, after the Belarusian presidential elections in December 2010, the EU introduced several rounds of targeted sanctions against Belarus and downgraded contacts with the Lukashenka government to the working level only. Belarus remained the only EaP-6 country whose president was not invited to the initiative's summits.

However, Minsk decided to stay on as an EaP partner state and the EU did not oppose that.

> Interestingly, despite the overall political crisis in relations with the EU, Belarus began to put forward multiple initiatives within the Eastern Partnership.

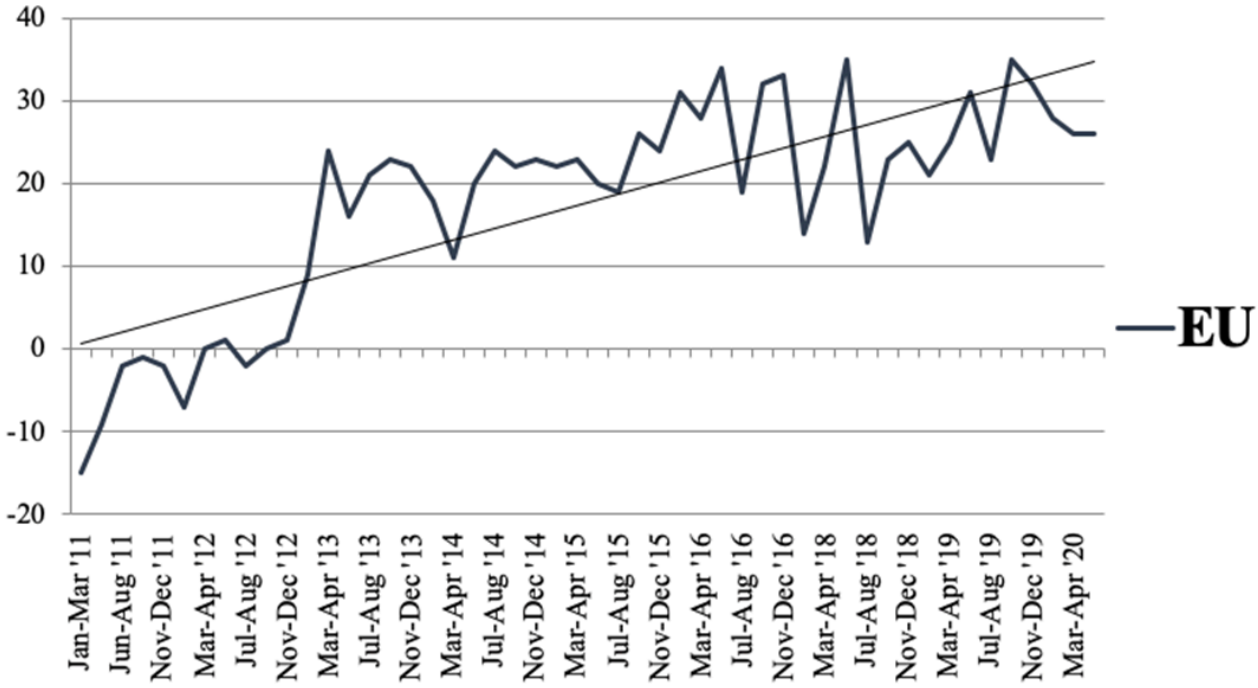
For instance, in 2011 it proposed the establishment of the EaP Business Forum. As Minsk and Brussels were again looking for ways of de-escalating and normalizing relations, Belarus's EaP participation gained a refreshed impetus, which was visible at the summits in Vilnius in 2014 and Riga in 2015. For instance, Minsk came up with another major initiative – the harmonisation of the digital markets within the Eastern Partnership. It also initiated and hosted the first ministerial meeting on environment.

Intensifying cooperation within the EaP clearly helped to strengthen the positive spillover effect for Belarus-EU bilateral relations. After the EU lifted its sanctions on Belarus in 2016, the normalization process accelerated and reached its all-times high in 2017-2020. Reflective of the process, Minsk and Brussels started talks on several significant documents, such as the Visa Facilitation and Readmission Agreements, which were signed in early 2020, and the EU-Belarus Partnership Priorities. The latter were meant to set a strategic framework for cooperation and, in the EU's opinion, become a setting stone for further negotiations on a major framework agreement. Minsk, on its part, proposed that talks on a new PCA or its more modern alternative start simultaneously with the negotiations on the partnership priorities.

However, the EU made it clear that Belarus had to demonstrate more progress on human rights and democracy (specifically, it wanted Minsk to introduce a moratorium on death penalty) before Brussels could even consider the issue. In the end, neither a new PCA nor the EU-Belarus Partnership Priorities were concluded, as Lithuania blocked the signing of the latter document demanding that Minsk terminate the construction of its nuclear power plant close to Lithuania's border.

Nonetheless, Belarus-EU relations saw a manifest upward dynamic in 2012-2020 and especially in 2015-2020, to what the country's EaP membership made an important contribution. Graph 1 shows combined data from the studies[1] that rely on event-analysis methodology and register the intensity and nature (i.e. whether they had a positive or negative character) of bilateral relations.

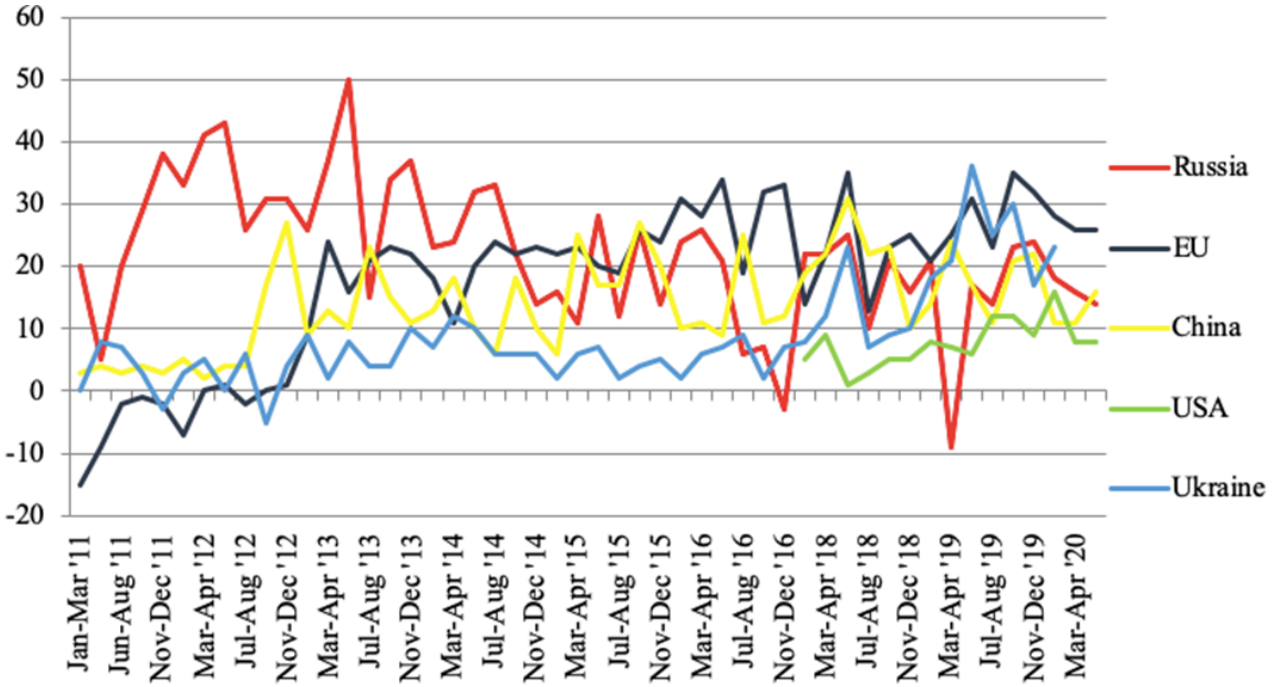
Graph 1. The dynamic of Belarus-EU relations, 2011-2020



Source: Belarusian Institute for Strategic Studies and the Minsk Dialogue Council on International Relations

According to the data, Belarus-EU cooperation left the "negative zone" (when contacts were minimal and predominantly conflictual) already in late 2012, as both Minsk and the EU started taking cautious steps to normalise the relationship. Thereafter, the relations remained in the "positive zone" and demonstrated gradual qualitative and quantitative growth. Graph 2 puts the dynamic of Belarus-EU relations in a comparative perspective with Belarus's other key foreign policy vectors [2].

Graph 2. The dynamic of Belarus's relations with key foreign partners, 2011-2020



Source: Belarusian Institute for Strategic Studies and the Minsk Dialogue Council on International Relations

Graph 2 demonstrates that whereas before 2013 the relations with the EU were the least intense and most negative among Belarus's key relationships, after 2015 they became the opposite: most intense and positive. In certain periods, EU relations looked well above the Russian vector. However, the intensity of relations reflects the number and quality of events and contacts in a bilateral relationship during a monitored period and is not synonymous with the relationship's overall depth. Hence, the fact that EU relations overtook the Russian vector in 2015 should not be interpreted as Belarus reorienting itself towards the EU in that period. Rather, it shows that Minsk was undertaking noticeable efforts to improve relations with the EU and the EaP played an important facilitating role in that endeavour. Statistics on Belarus's cooperation with key European financial institutions – the European Bank for Reconstruction and Development and the European Investment Bank – points to the same conclusion.

> To minimize geopolitical tensions around the EaP and offset associated national security risks, Minsk attempted to promote the Eastern Partnership as a geostrategic bridge at the heart of Europe.

In the security realm, especially after Minsk became the venue for peace talks on resolving the Russian-Ukrainian conflict over Crimea and Donbas, Belarus aimed to brand the Eastern Partnership as a possible element linking the increasingly divergent security realities across the OSCE space. In the economic field, it enthusiastically promoted the idea of the "integration of integrations" from Lisbon to Vladivostok, meaning enhanced cooperation between the EU and the Eurasian Economic Union (EAEU). Belarus's membership of the latter imposed limitations on how far it could advance in deepening economic relations with the EU and, therefore, Minsk was interested in minimising barriers to trade and cooperation between the EU and EAEU[3] and considered the EaP as a potential enabler of such economic convergence.

However, with all the progress that took place in Belarus-EU relations in 2009-2020, neither at the bilateral track nor within the Eastern Partnership framework did the positive change become structurally irreversible. Symbolically reflective of that were the failures to conclude the EU-Belarus Partnership Priorities and to start negotiations on a proper bilateral framework agreement, which the EU has with nearly every single country in its extended neighbourhood.

The above problem remained further aggravated by the shining lack of a strategic vision for where the sides wanted to take their relations and where the relations could realistically evolve. This was true in general, as Minsk did not seek accession opportunities and, thus, the EaP's "strengthening of political association and economic integration" modus operandi through association agreements and DCFTAs did not really meet Belarusian interests and expectations. It was equally true in specific areas of sectoral cooperation. For example, after multiple unsuccessful attempts to facilitate talks on agricultural cooperation, Belarusian officials came to the conclusion that the EU was simply dodging Belarus's requests without saying an explicit no, which frustrated many top-level Belarus government officials and led them to conclude that the EU was not serious about the longer-term prospects for relations with Minsk.

The 2020 watershed moment and further negative developments

The Belarusian presidential elections on 9 August 2020 became a watershed moment for Belarus-EU ties, including within the EaP framework. The EU did not recognise the election results and accused the Belarusian government of massive post-election violence, which led to an unprecedented diplomatic crisis between Minsk and Brussels. Since late 2020, the European Union has introduced multiple packages of targeted and sectoral sanctions against Belarus, which are unprecedentedly immense in the history of Belarusian-Western relations and already amount to a logistical semi-blockade of the

country. In response, Belarus started introducing its own countermeasures targeting EU diplomatic, economic and humanitarian interests. After 24 February 2022, when Russia attacked Ukraine, including from the Belarusian territory, the tensions escalated even more and have already resulted in the collapse of some of the most basic economic and social ties that previously kept the tissue of Belarus-EU relations together.

In response to the multiple sanction packages Belarus decided to suspend its participation in the Eastern Partnership in June 2021. Nearly all cooperation has ended within the initiative's framework and bilaterally with the EU.

Yet, neither Belarus has officially abandoned its Eastern Partnership membership altogether, nor has the EU made a formal decision to kick the country out of the initiative or replace the Belarusian authorities in the EaP's intergovernmental component with representatives of the opposition.

This is important, because the existing situation preserves technical opportunities to resume cooperation within the Eastern Partnership and to utilise it once again as an institutional instrument for normalizing bilateral ties.

However, for the EaP framework to retain even hypothetical chances to once again play a constructive role for Belarus-EU ties the overall continuing escalation in the relations has to be terminated as soon as possible. Interviews conducted for this paper with various potential stakeholders of the EaP in Minsk – government officials, businesses, and NGO representatives – reveal that while they all express a theoretical interest in future cooperation within the Eastern Partnership framework (if the framework itself survives in some form and shape), they do not see any realistic grounds to even think about cooperation under the existing conditions of permanently increasing pressure and sanctions from the EU side, which has already resulted in the curtailment of nearly all cooperation, including in purely non-political areas.

The situation is being further aggravated by the mutual perceptions in Brussels and Minsk. The EU, by the fact of not recognizing the legitimacy of the Lukashenka presidency, effectively, does not recognize the political realities in Belarus. This makes the very idea of a "partnership" with Minsk problematic. Moreover, the majority of EU officials emphasize that Minsk has become fully dependent on Russia and, thus, no longer appear to consider Belarus as a fully sovereign state, especially in the military domain. Officials in Minsk, on their part, tend increasingly to question the EU's own sovereignty, arguing that Brussels and key European capitals seem incapable of taking strategic decisions that contradict the United States' line, even when such decisions should be in their own interest.

> As a result of such incompatible perceptions, the gap between Belarus and the EU is growing and can soon become insurmountable. Under these circumstances, the sides are losing ability to even understand each other's logic, motives and policy moves.

If the trajectory continues, Belarus-EU relations might soon reach a point of no return to constructive cooperation, which will then further undermine their own strategic interests, as well as prospects for restoring regional stability and security. In that case, chances for reviving a productive relationship in a longer-term perspective will also suffer, as the current tensions and the restrictions they place on contacts across the border are having a highly negative effect on Belarusian public opinion regarding the EU.[4]

Recommendations: Building on staying interests and opportunities

As of the end of 2024, however, both the EU and Belarus appear interested in averting such a worst-case scenario. Minsk, in particular, seems to be signalling willingness to de-escalate the tensions and start looking for ways of resuming cooperative relations with the European Union in general and, specifically, with the EU member states that Belarus borders on[5]. The interviews with Belarusian government officials conducted for this paper confirm this conclusion.

In light of such ongoing signals from Minsk, as well as the EU's own long-term interest in protecting its relations with Belarus from a complete rupture, Brussels and individual member states should consider implementing the following recommendations:

1. **The EU should take a strategic assessment of its interests vis-à-vis Belarus and identify realistic policy objectives in line with those interests.**

The assessment should clarify Belarus's role for the EU in the new European security environment and, based on a thorough analytical (rather than political only) evaluation, establish what specific goals the EU can realistically achieve in its relations with Minsk. The assessment should cover all areas of interest to the EU – that is, regional security, economic and humanitarian cooperation, and the promotion of democracy and human rights, etc. The purpose of this analytical exercise should be to understand what exactly Minsk can offer to satisfy EU interests across all areas of potential cooperation and what objective limits the EU has in its policy towards Belarus.

> In particular, the assessment should establish what difference the Belarusian factor can make in the evolving security situation in Europe and whether Minsk is willing and capable to reciprocate a hypothetical positive change in the EU's policy with its own positive steps towards the EU.

For example, whether the Belarusian government can deliver on its declared interest to work on stabilizing the regional security situation and minimizing risks in the realm of military security, where Belarus still has a unique network of bilateral agreements on confidence- and security-building measures with Poland, Latvia and Lithuania. Or whether it can ensure that the migration crisis on Belarus-EU borders gets resolved and does not repeat again.

1. **Following the strategic assessment and the identification of realistic policy objectives, the EU should undertake a reality check of its past policies towards Belarus with a view to identifying an optimal policy toolbox under the new geopolitical circumstances.**

It is important that the EU should undertake a politically impartial evaluation of the results of its current policy of economic sanctions and heightened political pressure on Belarus and assess whether a course correction can bring better results in achieving the EU's specific objectives vis-à-vis Belarus. It should also explore possibilities for various forms of engaging Belarusian state and non-state actors. For example, it could explore possibilities for Track-2 forms of dialogue, as well as engaging officially through a special envoy or similar channels.

1. **Based on the outcomes of the strategic assessment of the EU's interests vis-à-vis Belarus and the reality check of its policies, the EU should consider reforming the Eastern Partnership framework with a view to maximizing its instrumental value in relations with Belarus.**

While the Prague version of the EaP is arguably dead beyond restoration, a reformed version of the framework for regional cooperation could still once again play a role in instrumentalizing the mutual interest of Belarus and the EU in reversing the escalation trend and reviving a partnership agenda. Like in the past, it could serve as an entry point for legitimizing the resumption of official contacts and project-based cooperation. Politically, it could also serve as a face-saving instrument and help the sides in carving a diplomatic way out of the current impasse in bilateral relations and the regional security dilemma, in which Belarus-EU dialogue appears to be a crucial variable.

However, preserving the EaP as a functional regional framework appears feasible only if the initiative's concept, structure and cooperation mechanisms are reformed so profoundly that they can reflect multiple fundamental changes that have taken place across the region in recent years. When designing an updated EaP framework, the EU should take into account both the insurmountably divergent trajectories of the EU's relations with each of the EaP-6, as well as the new – often negative – dynamic among the six partner countries themselves.

> Also, it should pioneer a philosophy of a new regional détente. In that way, it should aim at preventing a new iron curtain from descending on Belarus-EU border, which could be the single most important task of an EaP 2.0.

1. **The EU should undertake an audit of past Eastern Partnership projects with Belarus and identify in which areas similar projects could be initiated.**

In relations with Belarus, the EU should undertake a politically neutral audit of the past EaP projects that proved effective and helped to achieve tangible results. Based on the audit and the strategic assessment of the EU's objectives and limitations vis-à-vis Belarus, a new list of cooperation realms and specific projects could be drafted to be later proposed to Minsk if the political environment allows it. This can be done either within an updated version of the EaP or as part of possible bilateral engagement with Minsk (or both). Interviews conducted for this paper indicate that Belarusian state and non-state actors identify the following thematic areas as most promising for renewed cooperation: regional security; border management and cross-border mobility; transport and logistics; healthcare; cultural and educational cooperation; energy infrastructure development; banking and finances.

1 In 2011–2016, the Belarusian Institute for Strategic Studies produced the bimonthly monitoring study *Belarus's Foreign Policy Index*, and after March 2018, the Minsk Dialogue Council on International Relations used a similar methodology to produce the *Minsk Barometer*. The latter had a broader focus as it also dealt with the state of regional security in Europe's East, but the data on Belarus's foreign affairs from both studies are comparable. Neither study was published between January 2017 and March 2018.

2 The studies did not cover Belarus-US relations prior to January 2018.

3 In that endeavour Minsk was driven by a pragmatic expectation that the lowering of barriers between the two integration groupings would result in significant economic gains for Belarus. Numerous studies corroborated that expectation.

4 See, for example, recent online panels conducted by Chatham House.

5 See https://jamestown.org/program/belarusian-prisoner-releases-hold-potential-to-facilitate-belarus-west-relations/ and https://jamestown.org/program/belarus-offers-reset-of-bilateral-relations-to-lithuania/

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